



# DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

## PURSUIT CRITIQUE

**TROOPER NAME – TFC Garrett King #751 and TFC Cody Cantrell #136**

**Work Assignment: Troop/Division - A; Post/Unit – 3-Cartersville and 43 - Calhoun**

**INCIDENT REPORT # DPS00157854**

**Related Crash Reports: C000938541 ; \_\_\_\_\_ ; \_\_\_\_\_**

**P.I.T. Involved: No**

**S.C.R.T. Involved: No**

**Special Investigations Unit Involved: No**

**Use of Force Involved: No**

### **MEETING**

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

**Date:** 3/12/2024

**Time:** 1055 Hours

**Location:** Post 3 - Cartersville

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Lieutenant Tim Nichols #36, SFC Tony Rathel #408, TFC Garrett King #751 and TFC Cody Cantrell #136

### **INITIATION**

1. Provide the date and time the trooper became involved in the pursuit.

**Date:** 2/3/2024

**Time:** 1018 Hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

On 2/3/2024, at approximately 1018 hours, TFC King was patrolling northbound on I-75 near mile marker 289, when he observed a motorcycle traveling north without a visible tag. When TFC King attempted to stop the motorcycle, the rider failed to stop and a pursuit ensued.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☒ N/A                      If Yes, explain:

4. List the number and identity of other agencies and officers involved in the pursuit.

☐ N/A                      If needed, list: Along with TFC King and TFC Cantrell, MCCC Officers J. Nunn #7772, SFC D. Strickland #7755 and Gordon County Sheriff's Deputy G. Shipman #0141 were involved in the pursuit.

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A                      If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes                      ☐ No                      If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes                      ☐ No                      If no, explain:

#### **COMMUNICATION**

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☐ N/A                      If Yes, explain: TFC King contacted the Troop A Communications Center by radio and informed them that he was in a pursuit. TFC King provided his location, direction of travel and a description of the vehicle. Senior Dispatcher H. Jennings received this information and created a CAD call for the pursuit.

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes                      ☐ No                      If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A                      Explain: Once the pursuit initiated, Senior Dispatcher H. Jennings cleared the radio for emergency traffic before conducting a broadcast of the pursuit to all Troop A

Troopers. Dispatcher Carden contacted the Bartow and Gordon County 911 Centers to advise them of the pursuit and to request assistance.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☒ N/A                      If Yes, explain:

5. Did the trooper articulate his observations?

☒ Yes                      ☐ No                      If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes                      ☐ No                      If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A                      If Yes, explain:

#### **PURSUIT**

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit initiated on I-75 North near mile marker 289 and continued northbound until it terminated on I-75 at GA 136 (mile marker 319). The pursuit traveled approximately 31.1 miles and lasted 18 minutes and 21 seconds.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes                      ☐ No                      If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☐ N/A                      If Yes, explain: Once the pursuit entered Gordon County (Post 43 territory), TFC King yielded the primary position to TFC Cantrell.

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☐ N/A                      If Yes, explain: After TFC Cantrell became the primary unit, TFC King remained in the secondary position. Throughout the remainder of the pursuit, TFC King called the pursuit which allowed TFC Cantrell to focus on the fleeing vehicle. TFC King also kept TFC Cantrell informed of his position around TFC Cantrell's vehicle.

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☐ N/A                      If Yes, explain: The violator's actions during the pursuit support a charge of Felony Fleeing and Attempting to Elude.

6. Did the trooper articulate his observations?

☒ Yes

☐ No

If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes

☐ No

If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes

☐ No

If no, explain:

#### **DRIVING SKILLS**

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes

☐ No

If no, explain:

2. Were the driving skills/techniques initiated appropriately?

☒ Yes

☐ No

If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes

☐ No

If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes

☐ No

If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☒ No

If Yes, explain:

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No

If Yes, explain:

#### **EQUIPMENT**

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes

☐ No

If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes

☐ No

If no, explain:

3. Was the in-car camera working properly?

☒ Yes

☐ No

If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes

☐ No

If no, explain:

### **TERMINATION**

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes

☐ No

If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☒ N/A

If Yes, explain:

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☐ N/A

Explain: As the pursuit was approaching GA 136, the units involved were able to set up a Rolling Road Block. TFC Cantrell was in front of the motorcycle, TFC King was on the left, MCCD SFC Strickland was on the right and Gordon County Deputy Shipman was behind the motorcycle. The officers were able to slow the violator down substantially before the motorcycle struck the rear of TFC Cantrell's patrol car, thus terminating the pursuit.

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A

Explain: TFC King and TFC Cantrell utilized all their emergency equipment, exercised due caution and demonstrated good judgement/decision making skills throughout the pursuit. TFCs King and Cantrell operated their patrol cars in a responsible manner while TFC King commentated and communicated the violator's actions during the pursuit.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred during daytime hours with clear skies and a dry road surface. The traffic conditions along I-75 North during the pursuit would be described as light to moderate.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☐ N/A

If Yes, explain: The suspect demonstrated no intentions of stopping for law enforcement. The suspect traveled at very high speeds during the pursuit to avoid apprehension. The suspect drove in the emergency lanes for extended periods of time, improperly passed other motorists and recklessly swerved between other vehicles during the pursuit. The suspect's actions put the public's safety and all involved in jeopardy.

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☐ N/A

If Yes, explain: The suspect demonstrated no intentions of stopping for law enforcement. The suspect traveled at very high speeds during the pursuit to avoid

apprehension, drove in the emergency lanes and improperly passed other motorists. The suspect's actions put the public's safety and all involved in jeopardy.

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A If Yes, explain: The violator fled at speeds in excess of 100 miles per hour, drove in the emergency lanes and improperly passed other vehicles. The violator showed no regard for the safety of himself, his passenger or law enforcement officers.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☐ N/A If Yes, explain: With the Precision Immobilization Technique and Stop Sticks not being options due to the fleeing vehicle being a motorcycle, the officers executed a Rolling Road Block in order to terminate the pursuit. The reckless actions of the violator posed an immediate threat to himself and others, and it necessitated that the pursuit be terminated as soon as practical. The decision to implement the Rolling Road Block was objectively reasonable in order to safeguard the motoring public.

11. If there were any injuries, state who received them, the type and severity.

☐ N/A If Yes, explain: After the violator struck the rear of TFC Cantrell's patrol car, he lost control of the motorcycle and fell to the road surface. After doing so, Gordon County Deputy Shipman struck the violator with his patrol car, causing minor/visible injuries. The violator was transported the Hamilton Medical Center for treatment.

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A If Yes, explain:

13. Address any damage to vehicles.

☐ N/A If Yes, explain: TFC Cantrell's vehicle received only minor damage as a result of being struck in the rear by the motorcycle. The violator's vehicle sustained extensive damage as a result of falling to the ground after striking TFC Cantrell's patrol car.

#### **TROOPER'S ABILITIES AND EXPERIENCE**

1. Prior pursuits (compare if appropriate).

☐ N/A If Yes, explain: TFC King and TFC Cantrell have been involved in numerous pursuits during their careers as Georgia State Troopers.

2. Past use of techniques and high speed driving.

☐ N/A If Yes, explain: TFC King and TFC Cantrell have received E.V.O.C., Advanced E.V.O.C. and Pursuit-Ending Tactics Training.

#### **ISSUES ADDRESSED**

1. Positives.

☐

N/A

If Yes, explain: For this to have be an extended pursuit, TFC King and TFC Cantrell remained calm throughout the incident and neither Trooper out drove their abilities. TFC King did an outstanding job calling the pursuit and keeping TFC Cantrell informed as to his position at all times in order to allow TFC Cantrell to dedicate his attention to his driving skills. Also, both Troopers complemented the performance of the dispatchers in the Communications Center.

2. Areas for improvement.

☒

N/A

If Yes, explain:

3. Other considerations.

☒

N/A

If Yes, explain:

**RESPONSE FROM TROOPER OR SUPERVISOR**

1. Allow trooper and supervisor an opportunity to respond or add comments.

☒

N/A

If Yes, explain:

**CORRECTIVE ACTION TAKEN**

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

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N/A

If Yes, explain:

Lt. T. L. Nichols #36  
Reviewing Officer

*Lt. T. L. Nichols #36*

3/13/2024  
Date